



COMMERCIAL LEASE ADDENDUM FOR PERCENTAGE RENT

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ADDENDUM TO THE COMMERCIAL LEASE BETWEEN THE UNDERSIGNED PARTIES CONCERNING THE LEASED PREMISES AT _____

- A. "Gross sales" means the total of all receipts of any business conducted on or from the leased premises. Gross sales includes the total sales price of any sales of merchandise, products, or services, but does not include any sales or excise taxes. A credit or installment sale is a sale for the full price in the month that the sale was made regardless of when Tenant receives payment.
- B. In addition to any other rent, Tenant will pay, on or before the 10th day of each month, percentage rent that is equal to _____% (percentage rental rate) multiplied by Tenant's gross sales in the previous month that exceed:
- ☐ (1) the Base Monthly Rent. (i.e. natural break)
- ☐ (2) _____
- C. With the percentage rent payment, Tenant will provide Landlord an accurate written statement of gross sales for the previous month and copies of all sales and excise tax reports required to be filed by Tenant, subtenants, or concessionaires with any governmental agency.
- D. Tenant will maintain accurate financial books and records regarding gross sales. Landlord may inspect the books and records at any time during Tenant's normal business hours.
- E. At the end of each calendar year the total gross sales for the year will be multiplied by the percentage rental rate and reconciled with the amount of percentage rent actually paid. Additional amounts due from Tenant will be paid to Landlord and excess payments will be refunded by Landlord to Tenant.
- F. Special Provisions:

Landlord: _____

By: _____

By (signature): _____

Printed Name: _____

Title: _____

By: _____

By (signature): _____

Printed Name: _____

Title: _____

Tenant: _____

By: _____

By (signature): _____

Printed Name: _____

Title: _____

By: _____

By (signature): _____

Printed Name: _____

Title: _____